IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Jamal Khan Mandokhail
* Hon'ble Mr. Justice Hasan Azhar Rizvi

Civil Appeal No. 645 of 2024
Citation: PLD 2024 Lah 807
Matter ID: MAT-CIVI-2024-100

BETWEEN:
Muhammad Tariq Khan ... Appellant / Petitioner
VERSUS
Banking Court No. II, Multan ... Respondent

LEGAL TOPIC: Civil - Title & Res Judicata
STATUTES CITED: Code of Civil Procedure 1908, S. 11, S. 9, Qanun-e-Shahadat Order 1984, Art 117

JUDGMENT
1. This judgment disposes of Civil Appeal No. 645 of 2024, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Code of Civil Procedure 1908, S. 11 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate any illegality or procedural irregularity in terms of Code of Civil Procedure 1908, S. 11. Appeal stands dismissed with no order as to costs.

Decided on: 4 October 2024.